

22STCV41036A 22STCV41036A

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TENTATIVE

RULING

DEPARTMENT

415

HEARING DATE

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MOTION

Motion

for Summary Adjudication

MOVING PARTIES

Plaintiffs

Carrie Miller and Wake Leroux

OPPOSING PARTY

Defendant

Varun Bajaj

BACKGROUND

Plaintiffs Carrie

Miller and Wake Leroux ("Plaintiffs") move for summary adjudication of various issues against Defendant Varun Bajaj ("Defendant"). Defendant opposes the motion.

"A party may move

for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c, subd. (f)(1).)

The Court notes Plaintiffs'

Issue No. 2 is not limited to an issue of duty.

Likewise, Plaintiffs' Issue No. 4 does not seek summary adjudication of a cause of action, claim for punitive damages, or issue of duty. "There is little flexibility in the procedural imperatives of [Code of Civil Procedure section 437c], and the issues raised by a motion for summary judgment (or summary adjudication) are pure questions of law. As a result, section 437c is unforgiving; a failure to comply with any one of its myriad requirements is likely to be fatal to the offending party." (Brantley v. Pisaro (1996) 42 Cal.App.4th 1591, 1607.)

Accordingly, the

Court does not consider Issues Nos. 2 or 4.

LEGAL STANDARD – MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law[.] There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v.

Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) “[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Ibid.)

When the plaintiff seeks summary adjudication, the plaintiff bears the burden to produce admissible evidence on each element of every cause of action at issue. (Code Civ. Proc., § 437c, subd. (p)(1).)

EVIDENCE

The Court declines to rule on the evidentiary objections, as the Court did not rely on the evidence objected to in its ruling. (Code Civ. Proc., § 437c, subd. (q).)

DISCUSSION

Business Judgment Rule

Plaintiffs move for summary adjudication of Defendant’s affirmative defense the business judgment rule bars Plaintiff’s causes of action. The business judgment rule generally shields a corporation and the members of its board of directors from liability for decisions they made based on “any rational business purpose,” but it does not shield actions taken with improper motives or because of a conflict of interest. (Berg & Berg Enterprises, LLC v. Boyle (2009) 178 Cal.App.4th 1020, 1045.)

In their separate statement in support of their motion, Plaintiffs must identify “each supporting material fact claimed to be without dispute with respect to” each issue. (Cal. Rules of Court, rule 3.1350(b), (d).) Plaintiffs do not cite evidence in support of their contention the business judgment rule cannot bar their claims. Instead, Plaintiffs cite Defendant’s notice of motion for summary adjudication against Plaintiffs. Defendant’s notice of motion is not evidence. Accordingly, Plaintiffs fail

to meet his burden to show the business judgment rule has no merit.

Eleventh Cause of Action: Fraud

Plaintiffs'

eleventh cause of action is for fraud. "The

elements of fraud, which give rise to the tort action for deceit, are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another's reliance on the misrepresentation, (4) justifiable reliance, and (5) resulting damage." (Conroy v. Regents of University of California

(2009) 45 Cal.4th 1244, 1255.) Because

damages are an element of a cause of action for fraud, Plaintiffs cannot obtain summary adjudication on a cause of action for fraud without proving the damages to which Plaintiffs are entitled. (Paramount

Petroleum Corp. v. Superior Court (2014) 227 Cal.App.4th 226, 241.) In this regard, Plaintiffs have presented no evidence which show they are entitled to a specific sum of damages. Rather, Plaintiffs approximate their damages and seek to leave the issue of precise damages for later. (See, e.g., Motion for Summary Adjudication, pp. 12-13.) This is improper. Furthermore, Plaintiffs cite no evidence in support of their approximated damages.

Instead, Plaintiffs cite their own complaint and their mediation brief, neither of which is evidence. Accordingly,

the motion for summary adjudication of the eleventh cause of action is denied.

CONCLUSION AND ORDER

Plaintiffs fail to satisfy their burden by

establishing they are entitled to summary adjudication. As such, the motion is denied.

Plaintiffs are ordered to give notice of the

Court's ruling and to file proof of service of same.